

24STCV23670 24STCV23670

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-06-25

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Case Number: 24STCV23670 Hearing Date: June 25, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311 (formerly 19)

Tentative

Ruling

24STCV23670

MAYA

KOGAN BY AND THROUGH HER SUCCESSOR-IN-INTEREST, SAMAIL KOGAN, et al. vs
GRANADA HILLS CONVALESCENT HOSPITAL, INC.

June

25, 2026

8:30

AM

NATURE OF PROCEEDINGS:

MOTION TO COMPEL DEFENDANT GRANADA HILLS CONVALESCENT HOSPITAL, INC. DBA
GRANADA HILLS CONVALESCENT HOSPITAL TO PRODUCE A PERSON MOST KNOWLEDGEABLE.

RULING:

The Court orders the Motion
off calendar as moot.

I.

BACKGROUND

On September 13, 2024, MAYA
KOGAN, SAMAIL KOGAN, IRINA BRANDALIS, and MARINA KOGAN AKOPNIK, (Plaintiffs) filed
a Complaint against GRANADA HILLS CONVALESCENT HOSPITAL, INC. (Defendant),
listing Causes of Action for:

1.

ELDER ABUSE/NEGLECT (Pursuant to Welfare and Institutions Code
§§15657 & 15610.57);

2.

NEGLIGENCE;

3.

VIOLATION OF RESIDENT'S RIGHTS (Pursuant
to Health and Safety Code § 1430); and

4.

WRONGFUL DEATH.

Plaintiffs allege that MAYA
KOGAN (Deceased) was a dependent elder who suffered preventable
injuries, including pulmonary embolism, cerebral edema, anoxic brain
encephalopathy, multiple infections and death, and who Defendant convalescent
hospital had neglected and denied.

On May 29, 2026, Plaintiffs
filed the Motion to Compel a Deposition of Defendant's Person Most
Knowledgeable (PMK), on grounds that Defendant failed to produce a deponent.
Plaintiffs additionally request monetary sanctions in the amount of \$3,060.00
against Defendant.

Defendant opposes, based upon

counterarguments such as that the deposition date has been set for June 18, 2026, such that the Motion is moot, and meeting and conferring was inadequate.

II.

LEGAL STANDARD

A

motion lies to compel deposition attendance or document production, after service of a deposition notice, where a deponent fails to appear at, or proceed with, a deposition, without having served a valid objection under section 2025.410. (Code Civ. Proc., § 2025.450, subd. (a).)

Regarding discovery

sanctions, courts may determine substantial justification based on the “whole picture” of the discovery dispute, including where parties partially prevailed as to some discovery items in dispute, or where discovery concessions occurred only after improperly asserted objections. (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1297.)

III.

ANALYSIS

Plaintiffs move to compel

the PMK’s deposition attendance, and persist in advancing the request in the Reply filed June 17, 2026, based upon uncertainty as to whether the deposition attendance would occur the next day.

Defendant counterargues

that Plaintiffs unilaterally set a deposition date, and the Motion to Compel is moot after a mutual agreement to the date. Additionally, Defendant requests sanctions in the amount of \$1,351.20 against Plaintiffs and/or their counsel, for failing to meet and confer.

No meet and confer is

required to compel initial deposition attendance, but instead there must be a declaration showing that moving party inquired about the nonappearance. (Code Civ. Proc., § 2025.450, subd. (b)(2).) “Implicit in the requirement that counsel contact the deponent to inquire about the nonappearance is a requirement that counsel listen to the reasons offered and make a good faith attempt to resolve the issue,” including by rescheduling. (Leko v. Cornerstone Bldg. Inspection Serv.

(2001) 86 Cal.App.4th 1109, 1124. See also Super. Ct. LA County, Local Rules, rule 3.26 ["guidelines adopted by the Los Angeles County Bar Association are adopted as civility in litigation recommendations...."].)

The Court orders the
Motion off calendar, as moot, after the deposition date has passed.

Additionally, the Court
does not grant either side's sanctions request, it finding substantial
justification as to whether meeting and conferring is even required, and as to
the debatable issue whether the parties sufficiently interacted timely in
setting the deposition date.

IV.

CONCLUSION

The Court orders the
Motion off calendar and denies sanctions.